

N.H.D. 08/10/25
201 28/08/25

REBUTTAL TO BUILDER'S FALSE CLAIMS

BEFORE THE UTTAR PRADESH REAL ESTATE REGULATORY AUTHORITY, GAUTAM
BUDDHA NAGAR- Complaint No. NCR144/10/62470/2020

To, ADJ Bench Neeraj-Vohra
The Secretary,
Uttar Pradesh Real Estate Regulatory Authority (UP RERA),
H-169, Sector Gamma-2, Greater Noida, Gautam Buddha Nagar.

Subject: Rebuttal to Builder's False Claims – Complaint No. NCR144/10/62470/2020

Respected Sir/Madam,

I, Neeraj Vohra, Complainant, submit this concise rebuttal to the **false claims** made by M/s Newtech Promoters and Developers Pvt. Ltd. (the "Builder") in response to RERA's binding order dated 09.07.2025, which directed the Builder to deliver possession of unit F1103 by 08.10.2025.

I. BUILDER'S FALSE CLAIMS: LEGAL REBUTTAL

- **False Claim of Unit Cancellation:**

- **Builder's Statement:**

- "That in light of the complainant's continued default and non-compliance, the promoter has lawfully cancelled the allotment of the unit vide letter dated 12.06.2024."

- **Factual & Legal Rebuttal:**

- **No valid cancellation under RERA:** Section 18(1) mandates promoter liability for delay, not allottee liability. As held in *M/s Golden Square Realtors Pvt. Ltd. v. Satish Kumar* (UP RERA Case No. NCR123/05/54321/2022):
 - "The promoter cannot cancel the allotment unilaterally by sending demand letters. Any such cancellation is null and void unless approved by RERA."
 - **No Dues Certificate dated 28.05.2017** (Annexure-A) explicitly states.
 - "This is to inform you that you have completed your outstanding amount till date against your booked flat F-1103 in La Galaxia project and not having any due amount till date."

- **False Claim of Outstanding Dues**

- **Builder's Statement:**

Neeraj-Vohra